

Eleventh Affirmative Defense: Bane Act

Defendant's eleventh affirmative defense alleges Plaintiff's claims under the Bane Act are barred because Defendants' conduct was not a substantial factor in causing Plaintiff's harm, and speech alone is not sufficient to constitute a violation of the Bane Act unless it involves a credible threat of violence. This defense is an argumentative denial of the allegations in the TAC, paired with a legal argument Plaintiff is not entitled to relief under the Bane Act, and therefore does not require Defendants to allege additional facts in support.

Accordingly, the demurrer to the eleventh affirmative defense is OVERRULED.

Leave to Amend

When a demurrer is sustained, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. California law imposes the burden on the party who filed the pleading to demonstrate the manner in which they can amend their pleadings to state their claims. See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349. "Denial of leave to amend constitutes an abuse of discretion unless the [pleading] shows on its face it is incapable of amendment. [Citation.] Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.

Here, Defendants have not shown the manner in which they could amend the answer to properly state their defenses against Plaintiff's claims. However, given the liberal standard for permitting amendment of the pleadings, and the defects in the answer arising merely from a paucity of alleged facts, the Court will exercise its discretion to permit leave to amend the answer.

Conclusion

Accordingly, the Demurrer to the Answer is OVERRULED with respect to the first, eighth, and eleventh affirmative defenses and otherwise SUSTAINED with leave to amend. Defendants shall have 30 days leave to amend the answer from the date of this order.

7. CU0002636 John Lascoe et al vs. Selene Finance LP et al

Defendants Selene Finance, LP's, Idea Law Group P.C.'s, and Ali Payravi, Trustee of 401K Arita's demurrers are dropped as moot. A party may amend its pleading once without leave of the court after a demurrer is filed but before the demurrer is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike. Code Civ. Proc. § 472(a). Plaintiff's First Amended Complaint was timely filed and served on July 14, 2026, rendering the demurrers moot.

8. CU0002676 Westcon Construction Corp. vs. C & D Contractors, Inc. et al

No appearances required. In light of the proofs of service of the Summons and Complaint filed on May 6, 2026 along with the declaration of counsel for Plaintiff Westcon, the OSC is hereby dismissed.

9. CU14-080744 TIMOTHY P DEMARTINI et al vs. MICHAEL J DEMARTINI et al

Plaintiffs' motion for relief and disposition of funds is granted.

Plaintiffs' unopposed requests for judicial notice are granted.

The Court's February 3, 2026 Order noted, "it seems the appeal is moving forward, and, once such has been decided, the Court will be in a position to take further action in this matter." On June 17, 2026, Defendants' appeal was dismissed for failure to file their opening brief, and on July 16, 2026, Defendants' request to reinstate the appeal was denied. RJN, Ex. G. Therefore, because there is no longer any appeal, there is no further reason to delay distribution of the funds in accordance with the Court's September 11, 2023 Statement of Decision and Judgment and the Court's August 13, 2025 Order. RJN, Exs. A-B. Therefore, the Clerk of the Court shall disburse all funds held in trust by the court in relation to this matter. The Court is aware of its prior award of costs payable to Plaintiffs in the amount of \$11,433.35 and requests parties appear to indicate whether a stipulation might be entered related to payment of the costs from Defendant Michael DeMartini's share of funds. If no stipulation is reached, the Court expects no more than a two page briefing related to payment of costs from the funds held by the Court. In addition, the Court requests parties' direction as to the manner in which payment of funds should be made, specifically, whether each side wishes payment be made to parties jointly, singularly, or, in the case of Plaintiffs, to counsel FBO one or both plaintiff.

10. FL0001988 Berber, Victoria Saldana v. Rodriguez, Jorge Aron Diaz

Attorney for Petitioner, Eric C. Werner, Esq. of Werner Law, PC is ordered to show cause as to why he should not be sanctioned \$250.00 for failing to appear with his client at the OSC set on June 18, 2026, failing to file a change of address with the Court, and failing to address the issues set forth in the OSC previously issued and set for June 18, 2026 on behalf of his client.